§ 260.34 Endangering the welfare of a vulnerable elderly person, or an incompetent or physically disabled person in the first degree.

A person is guilty of endangering the welfare of a vulnerable elderly person, or an incompetent or physically disabled person in the first degree when, being a caregiver for a vulnerable elderly person, or an incompetent or physically disabled person:

1. With intent to cause physical injury to such person, he or she causes serious physical injury to such person; or

2. He or she recklessly causes serious physical injury to such person.

Endangering the welfare of a vulnerable elderly person, or an incompetent or physically disabled person in the first degree is a class D felony.